

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 16-01

**CARGO AGENTS, INC., INTERNATIONAL TRANSPORT MANAGEMENT CORP.,
and RCL AGENCIES, INC., on behalf of themselves and all others similarly situated,**

v.

**NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC.,
MITSUI O.S.K. LINES, LTD., MITSUI O.S.K. BULK SHIPPING (USA) INC., WORLD
LOGISTICS SERVICE (U.S.A.) INC., KAWASAKI KISEN KAISHA, LTD., "K" LINE
AMERICA, INC., EUKOR CAR CARRIERS INC., WALLENUS WILHELMSSEN
LOGISTICS AS, WALLENUS WILHELMSSEN LOGISTICS AMERICAS LLC,
COMPAÑIA SUD AMERICANA DE VAPORES S.A., CSAV AGENCY NORTH
AMERICA, LLC, HÖEGH AUTOLINERS HOLDINGS AS, HÖEGH AUTOLINERS
AS, HÖEGH AUTOLINERS, INC., AUTOTRANS AS, ALLIANCE NAVIGATION
LLC, and NISSAN MOTOR CAR CARRIER CO., LTD.**

JOINT STATUS REPORT

Pursuant to the January 31, 2017 Order Requiring Joint Status Report, this joint status report is submitted on behalf of all Complainants and all Respondents (collectively, "Parties") in FMC Docket No. 16-01. The Parties have discussed the issues identified in the Order Requiring Joint Status Report, and have endeavored in good faith to resolve any disagreements through the meet-and-confer process. To the extent the Parties were unable to reach agreement, their respective positions are identified below.

1. STAY:

Complainants' Position: It is and has been Complainants' position that Respondents' motion for a stay should be denied. The decision by the United States Court of Appeals for the Third Circuit, affirming the dismissal of the class action filed by Direct Purchaser Plaintiffs

alleging violations of the Sherman Act, does not alter that position. Indeed, the issuance of that decision makes any stay of the proceedings before the FMC unwarranted.

In pressing for dismissal before the district court, Respondents argued that the Commission is the only proper forum for Complainants to seek redress for their admitted anticompetitive conduct. Having filed a complaint with the Commission asserting claims under the Shipping Act, Complainants should be permitted to proceed without further delay.

The original case was filed in the district court in May 2013, and Complainants' complaint was filed before the Commission in December 2015, more than a year ago. Any further delay in these proceedings would disadvantage Complainants; evidence may be lost and testimony may be unavailable as memories fade and witnesses may no longer be found.

The Commission should reject Respondents' argument that these proceedings should be further delayed because Indirect Purchaser Plaintiffs may seek further appellate review of the dismissal of their claims before the district court. Indirect Purchaser Plaintiffs do not challenge the Third Circuit's ruling that Clayton Act claims are precluded by the Shipping Act, which is the basis upon which Complainants' claims were dismissed. Rather the Indirect Purchaser Plaintiffs seek reconsideration only of the ruling that their state law claims are pre-empted. A decision on that issue has no effect on Complainants' right to proceed on their claims before the Commission. In short, there is no valid basis to hold Complainants' claims hostage to judicial proceedings that do not involve them and whose outcome will not affect them, when their claims are properly before the Commission for resolution.

Complainants' respectfully request that, as discussed in Section 4 below, the Presiding Officer issue an order identifying those legal issues that it wishes the parties to brief now, and the

Parties shall within 14 days meet and confer and submit a proposed motion briefing schedule to the Presiding Officer.

Respondents' Position: Respondents' position on the motions to stay remains the same. For the reasons stated in their motions to stay, Respondents respectfully submit that all four of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11) pending before the Presiding Officer should remain stayed pending final resolution of the District of New Jersey Multidistrict Litigation ("MDL Case"), *In re Vehicle Carrier Services Antitrust Litig.*, Master Docket No. 13-cv-3306 (ES) (JAD) (MDL No. 2471), including the exhaustion of any potential appeals. Although the Complainants in *Cargo Agents, Inc. et al. v. Nippon Yusen Kabushiki Kaisha et al.*, FMC Docket No. 16-01, have stated they "are not seeking any further appellate review," the Complainants in the rest of the cases (FMC Docket Nos. 16-07; 16-10; 16-11) pending before the Presiding Officer remain free to continue to press their appeals. On February 1, 2017, they filed a Petition for Panel Rehearing and Rehearing En Banc with the United States Court of Appeals for the Third Circuit, in which they maintained their consistent position that their antitrust, consumer protection, and unjust enrichment claims should proceed in federal court. On February 22, 2017, the United States Court of Appeals for the Third Circuit denied the Petition for Panel Rehearing and Rehearing En Banc; the Complainants in the rest of the cases have not yet indicated whether they intend to seek further appellate review.

As demonstrated by the similarities across the four Complaints (Docket Nos. 16-01, 16-07, 16-10, and 16-11), many of the legal and factual issues, including several of the "Legal Issues" identified below, are common to all four of cases. The interests of judicial economy, efficient case management, and the desirability of avoiding duplicative proceedings and piecemeal litigation support staying all four of the cases until final resolution of all appeals in the

MDL Case. The compelling interests of judicial economy and efficient case management under these circumstances are demonstrated by the fact that both the District Court and the Third Circuit in the MDL Case ordered that all cases proceed in parallel, and, more generally, by the decision of the Judicial Panel on Multidistrict Litigation (“JPML”) to transfer the actions to the District of New Jersey for coordinated or consolidated pretrial proceedings.¹

None of the Complainants will be unduly prejudiced by having all four of the cases proceed in parallel following the resolution of all appeals in the MDL Case, rather than in a duplicative, piecemeal fashion. The complaints before the District Court and the Third Circuit proceeded in parallel in a fair and efficient manner, and Complainants have no legitimate basis to assert undue prejudice here as a result of implementing the same case management structure for all four of the cases. In contrast, Respondents will be prejudiced by the inefficiency of contemporaneous litigation in two separate fora, with the possibility of inconsistent results.

Respondents respectfully submit that, once all four of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11) are ordered to proceed, the Parties should meet and confer to discuss a briefing schedule for Respondents’ forthcoming motions. The Respondents respectfully submit that, within 14 days of the date on which all four of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11) are ordered to proceed, the Parties shall meet and confer and submit a joint status report with a proposed motion briefing schedule to the Presiding Officer.

¹ See generally 28 U.S.C. § 1407 (“Such transfers shall be made by the judicial panel on multidistrict litigation authorized by this section upon its determination that transfers for such proceedings will be for the convenience of parties and witnesses and will promote the just and efficient conduct of such actions.”).

2. **PROTECTIVE ORDERS:**

Joint Position: On June 30, 2014, United States Magistrate Judge Joseph A. Dickson entered a Discovery Confidentiality Order in the MDL Case. *See In re Vehicle Carrier Services Antitrust Litig.*, Master Docket No. 13-cv-3306 (ES) (JAD) (MDL No. 2471), ECF No. 162 (June 30, 2014) (attached as Exhibit 1). This order remains in effect. *Id.* at 5. The provisions of the Discovery Confidentiality Order, to the extent they are consistent with 46 C.F.R. § 502.5 and 502.13, should be incorporated by reference through an appropriate order by the Presiding Officer and remain in effect for the duration of all of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11). To the extent that any Complainants in any of the cases are not bound by the Discovery Confidentiality Order in the MDL Case, those Complainants should be bound by the Presiding Officer's order in the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11).

In addition, in the District Court, the parties disagreed on the temporal scope of their document preservation obligations.² That issue was submitted to, but not decided by, the district court. The Presiding Officer should decide this issue.

3. **DISCOVERY:**

Complainants' Position: No discovery has taken place in these proceedings or in the proceedings before the district court; no documents have been produced, no document requests or subpoenas have been issued, and no depositions have been taken of any party or non-party.

Complainants submit that the most efficient and expeditious way to proceed is for each of the Respondents to produce promptly all documents Respondents provided to the Department of Justice at any time since January 1, 2012 in connection with DOJ's investigation of anticompetitive conduct in the vehicle ocean carrier industry. Because these materials have

² See Exhibit 2 (joint letter submitted to the district court regarding, *inter alia*, the temporal scope of document preservation obligations).

anticompetitive conduct in the vehicle ocean carrier industry. Because these materials have already been gathered, reviewed, and produced, Respondents should be able to simply reproduce them to Complainants without significant expense or delay. Such production of government investigation materials is often ordered in cases before a ruling on a motion to dismiss, particularly where—as here—one or more Respondent/Defendant has pled guilty. *See, e.g., In re Liquid Aluminum Sulfate Antitrust Litig.*, No. 16-MD-2687, Dkt. No. 209, at 7-8 (D.N.J. July 5, 2016) (ordering defendants to provide a copy of their Government Productions prior to plaintiffs' filing their consolidated amended complaint); *In re Platinum & Palladium Commodities Litig.*, No. 10-cv-3617-WHP, Dkt. No. 59, at 2-3 (S.D.N.Y. Nov. 30, 2010) (compelling defendants to produce 250,000 pages of documents already produced to government authorities before the decision on the motion to dismiss); *In re Static Random Access Memory (SRAM) Antitrust Litig.*, 580 F. Supp. 2d 896, 899-900 (N.D. Cal. Feb. 14, 2008) (explaining how the court required production of documents provided to DOJ well before adjudicating defendants' motions to dismiss).⁴

Complainants further submit that the Presiding Officer should order that within 30 days of a ruling on any legal issues that the Presiding Officer identifies for immediate briefing, the Parties shall meet and confer and submit a joint proposed discovery schedule.

Respondents' Position: No discovery has taken place in any related cases. To avoid unnecessarily burdening the Parties, third-parties, and the Presiding Officer, Respondents respectfully submit that the Presiding Officer should exercise her discretion to stay any discovery in all four of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11) until after the

⁴ Respondents cite *In re Graphics Processing Units Litigation*, C 06-07417 WHA, 2007 WL 2127577 (N.D. Cal. July 24, 2007) in support of their argument that no material should be produced at this time. One of the important factors considered by the GPU court was that unlike here, there had been no guilty pleas. *See id.* at *5.

Presiding Officer rules (and any associated appeals occur) on the dispositive motions Respondents will file. In large multi-party litigation involving complex claims, courts routinely stay discovery in similar circumstances, and such stays are increasingly commonplace. Stays of discovery are particularly appropriate where, as here, the complaints suffer from fatal deficiencies that will be tested by motions to dismiss.

Consistent with this widespread practice in large, complex multi-party litigation that resembles the cases here, Respondents strongly object to Complainants' demand that Respondents provide discovery before the motions to dismiss are decided; Complainants' demand is premature. As a practical matter, it is not possible to make meaningful and realistic decisions about the timing and scope of discovery before the Presiding Officer rules on the motions to dismiss. The Presiding Officer's decision on the motions to dismiss will determine the contours of the claims, defenses, and key issues in this case. *See, e.g., In re Graphics Processing Units Antitrust Litig.*, C 06-07417 WHA, 2007 WL 2127577, at *5 (N.D. Cal. July 24, 2007) (concluding "that first resolving the motions to dismiss is the better course" because "[a]fter full ventilation of the viability vel non of the complaint, we will all be in a much better position to evaluate how much, if any, discovery to allow"). The nature of the claims that survive the motions to dismiss, if any, and the geographic locations and time periods they may implicate will have a significant impact on the types of information that are relevant and discoverable, the locations that must be searched, and the relevant time periods for discovery. All of these issues will profoundly impact the volume of information that must be produced, the cost burden on Respondents in responding to discovery requests, and the amount of time required to complete discovery.

Complainants also suggest -- without providing a basis -- that the documents they request can be produced “simply” and “without significant expense or delay.” That simply is wrong. The Department of Justice seized large volumes of documents and data without giving Respondents an opportunity to conduct any review for privilege or relevance, or conduct any other substantive review. Before those documents could be produced in a private action such as this), Respondents would have to undertake a massive review for relevance, privilege, and privacy issues. There is no good or valid justification for requiring such a massive, costly, and time-consuming undertaking before the Presiding Officer determines the threshold issue: whether Complainants have a viable complaint.

In addition, Complainants’ discovery request ignores the fact that the Department of Justice may have a position on whether the documents Complainants request should be produced. The Presiding Officer likely will have to accept briefing or hear arguments from the Department of Justice before any production of documents can take place, and it may well request that, in light of its ongoing investigative efforts, the Presiding Officer issue a full or partial stay.

For these reasons, Respondents respectfully submit that no discovery should take place in any of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11) until after the Presiding Officer rules (and any associated appeals occur) on the dispositive motions Respondents will file. If the Presiding Officer is inclined to entertain Complainants’ request for discovery prior to deciding the motions to dismiss, that request must be made through a formal motion, which will allow the Parties to brief the issue properly, notify the relevant government agencies to determine if they intend to take a position and/or seek a stay, and create a proper record for review.

4. **LEGAL ISSUES:**

Complainants' Position: The Order identifies certain legal issues whose determination “may expedite resolution of these cases,” and Complainants do not have any additional issues to identify. Complainants request that the Presiding Officer issue an order identifying those legal issues that it wishes the parties to brief now, and within 14 days of entry of that order the Parties shall meet and confer and submit a proposed briefing schedule to the Presiding Officer.

Respondents' Position: The legal issues identified by the Presiding Officer may expedite resolution of all four of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11). Respondents also identify the following as issues that may expedite resolution: (a) whether proper service has been effected on the Specially Appearing Respondents; (b) does the Commission possess statutory authority to entertain a class action; (c) even assuming the Commission has statutory authority to entertain a class action, whether doing so is “consistent with sound administrative practice”; (d) whether the named Complainants in all four of the cases have standing to seek reparations under the Shipping Act; (e) whether the filed rate doctrine and similar principles bar the Complainants’ claims for reparations under the Shipping Act; and, (f) whether Complainants’ Shipping Act claims are adequately pled or alleged as a matter of law. Respondents expressly reserve all rights to advance any additional defenses and arguments during the course of each of the four cases.

5. **SETTLEMENT:**

Joint Position: Counsel for Complainants have reached out to counsel for certain Respondents on the subject of settlement. Those discussions may or may not eventually be fruitful. The content of those discussions is confidential and governed by Rule 408 of the Federal Rules of Evidence, such that the parties may not disclose their substance.

Complainants' Position: Complainants suggest that the Administrative Law Judge should consider the appointment of a neutral mediator to assist the Parties in exploring whether the claims may be resolved through settlement.

Respondents' Position: It likely is premature to engage in any meaningful settlement discussions until, at the earliest, the resolution of Respondents' expected dispositive motions. The resolution of those motions will help to facilitate settlement discussions in all four of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11). At present, Respondents oppose the appointment of a mediator under 46 *C.F.R.* § 502.91(e); whether the later appointment of a mediator is appropriate is more timely after the resolution of Respondents' dispositive motions.

6. LEAD/LIAISON COUNSEL:

Complainants' Position: During the proceedings in the district court, the judge appointed Interim Liaison Counsel and Interim Co-Lead Counsel for Complainants. A copy of the Order making that appointment, dated March 3, 2014, is attached as Exhibit 3. Complainants submit that this structure was effective and efficient and that no change should be made for purposes of these proceedings.

Respondents' Position: Mark W. Nelson of Cleary Gottlieb Steen & Hamilton LLP, counsel for Respondents Kawasaki Kisen Kaisha, Ltd. and "K" Line America, Inc., and Roberto A. Rivera-Soto of Ballard Spahr LLP, counsel for Specially Appearing Respondents Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, and EUKOR Car Carriers Inc. will serve as Liaison Counsel on behalf of all Respondents. Respondents respectfully submit that, at the Presiding Officer's discretion, the appointment of Lead Counsel for Complainants is appropriate, but that no Lead Counsel appointment for Respondents is necessary or appropriate at this time.

7. FILING PROCEDURE:

The Parties will comply with the filing procedures set forth in the January 31, 2017 Order Requiring Joint Status Report.

8. CONSOLIDATING FILINGS:

The Parties will comply with the consolidated filing procedures set forth in the January 31, 2017 Order Requiring Joint Status Report.

9. CAPTION:

The Parties will comply with the caption filing procedures set forth in the January 31, 2017 Order Requiring Joint Status Report.

10. SERVICE BY EMAIL:

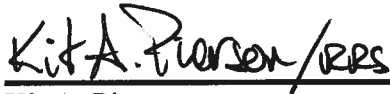
All Specially Appearing Respondents who have entered Special Appearances through counsel in all four of the cases (FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11) expressly reserve all rights and defenses regarding whether proper service has been effected on them. Subject to this reservation, the Parties consent to receive service of the rulings, orders, and decisions in this case through email in lieu of service by U.S. mail. The Parties respectfully request that all rulings, orders, and decisions be served on counsel for each of the Parties, and not exclusively through liaison counsel. The affected Party will notify the Commission of any change of service address.

11. CASE MANAGEMENT:

As appropriate during the course of the case, from time to time, the Parties may propose additional procedures or provide additional information for the efficient management and resolution of these cases.

Respectfully submitted,

DATED: March 1, 2017

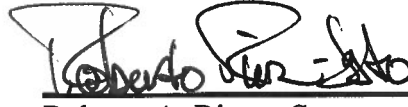


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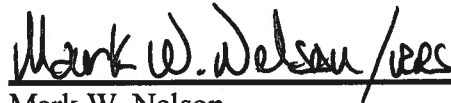
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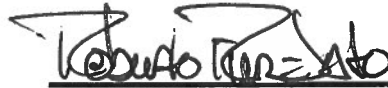
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Counsel for Complainants

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that, on this 1st day of March, 2017, a true and correct copy of the foregoing joint status report was served via electronic mail on the foregoing counsel, all of whom join in this joint status report.

A handwritten signature in black ink, appearing to read "Roberto Rivera-Soto", written over a horizontal line.

Roberto A. Rivera-Soto

EXHIBIT 1

**UNITED STATES DISTRICT COURT
THE DISTRICT OF NEW JERSEY
NEWARK VICINAGE**

**IN RE VEHICLE CARRIER SERVICES
ANTITRUST LITIGATION**

Master Docket No. 13-cv-3306 (ES) (JAD)
(MDL No. 2471)

This Document Relates to all Actions

DISCOVERY CONFIDENTIALITY ORDER

It appearing that discovery in the above-captioned action is likely to involve the disclosure of confidential information, it is ORDERED as follows:

1. This Discovery Confidentiality Order ("Order") governs the named Plaintiffs ("Plaintiffs") and all named Defendants ("Defendants") (collectively, "the Parties") in the captioned matter and all civil actions subsequently transferred, coordinated or consolidated with this action, including the consolidated direct purchaser, end-payor, and dealer actions (the "Actions"). This Order shall also govern and apply to material produced by non-parties in any case to which this Order applies.

2. This Order shall govern the use of Confidential and Attorneys' Eyes Only material produced during discovery in the Actions, including documents, depositions, deposition exhibits, interrogatory responses, and admissions. For purpose of this Order, the Party or non-party designating information, documents, materials or items as "Confidential" or "Attorneys' Eyes Only" (the "Designating Party") bears the burden of establishing the confidentiality of all such information, documents, materials, or items. All Confidential and Attorneys' Eyes Only material exchanged pursuant to this Order shall be used by the receiving party solely for purposes of the Actions, shall not be used by the receiving party for any other purpose, and shall not be disclosed by the receiving party to anyone other than as permitted by this Order.

3. Any Party and any non-party shall have the right to designate as "Confidential" and subject to this Order any information, document, or thing, or portion of any document or thing produced by it: (a) that contains trade secrets, competitively sensitive technical, marketing, financial, sales or other confidential business information, or (b) that contains private or confidential personal information, or (c) that contains information received in confidence from non-parties, or (d) which the producing party otherwise believes in good faith to be entitled to protection under Rule 26(c)(1)(G) of the Federal Rules of Civil Procedure and Local Civil Rule 5.3. Any Party or any non-party covered by this Order, who produces or discloses any Confidential material, including without limitation any information, document, thing, interrogatory answer, admission, pleading, or testimony, shall mark the same with the following or similar legend: "CONFIDENTIAL" or "CONFIDENTIAL - SUBJECT TO DISCOVERY CONFIDENTIALITY ORDER" (hereinafter "Confidential").

4. Any Party and any non-party shall have the right to designate as "Attorneys' Eyes Only" and subject to this Order any information, document, or thing, or portion of any document or thing produced by it that contains highly sensitive business or personal information, the disclosure of which is

highly likely to cause significant harm to an individual or to the business or competitive position of the designating party. Any Party or any non-party covered by this Order, who produces or discloses any Attorneys' Eyes Only material, including without limitation any information, document, thing, interrogatory answer, admission, pleading, or testimony, shall mark the same with the following or similar legend: "ATTORNEYS' EYES ONLY" or "ATTORNEYS' EYES ONLY - SUBJECT TO DISCOVERY CONFIDENTIALITY ORDER" (hereinafter "Attorneys' Eyes Only").

5. All Confidential and Attorneys' Eyes Only material shall be used by the receiving party solely for purposes of the prosecution or defense of this action, shall not be used by the receiving party for any business, commercial, competitive, personal or other purpose, and shall not be disclosed by the receiving party to anyone other than those permitted under this Order, unless and until the restrictions herein are removed either by written agreement of counsel for the Designating Party, or by Order of the Court. It is, however, understood that counsel for a Party may give advice and opinions to his or her client solely relating to the above-captioned action based on his or her evaluation of Confidential and Attorneys' Eyes Only material, provided that such advice and opinions shall not reveal the content of specific Attorneys' Eyes Only material except by prior written agreement of counsel for the Designating Party, or by Order of the Court.

6. Confidential material and the contents of Confidential material may be disclosed only to the following individuals under the following conditions:

a. Outside counsel (herein defined as any attorney at the Parties' outside law firms) and relevant in-house counsel for the parties;

b. Outside experts or consultants retained by outside counsel for purposes of this action, provided they have signed a non-disclosure agreement in the form attached hereto as Exhibit "A";

c. Mediators or arbitrators engaged by the parties for settlement purposes in the action;

d. Secretarial, paralegal, clerical, or duplicating and data processing personnel of the foregoing;

e. The Court and court personnel;

f. Any deponent or witness may be shown or examined on any information, document or thing designated Confidential if it appears that the witness authored or received a copy of it, was involved in the subject matter described therein, is an employee of the Designating Party or was an employee of the Designating Party at the time that the Confidential material was created (as long as such person has signed a non-disclosure agreement in the form attached hereto as Exhibit "A" and is not in an adversarial position - unrelated to this litigation - to the Designating Party), and any person who Counsel reasonably believes, prior to disclosing the Confidential material, that such person has knowledge of such information or the contents of the Confidential material, or if the Designating Party consents to such disclosure;

g. Vendors retained by or for the parties to assist in preparing for pretrial discovery, trial and/or hearings including, but not limited to, court reporters, videographers, legal translators, litigation support personnel, jury consultants, individuals to prepare demonstrative and audiovisual aids for use in the courtroom or in depositions or mock jury sessions, as well as their

staff, stenographic, and clerical employees whose duties and responsibilities require access to such materials;

h. The Parties, which in the case of the parties to this litigation that are corporations or other business entities shall mean executives who are required to participate in decisions with reference to this lawsuit; and

i. Other persons that counsel for the Designating Party agrees in advance, or as Ordered by the Court.

7. Attorneys' Eyes Only material and the contents of Attorneys' Eyes Only material may be disclosed only to the following individuals under the following conditions:

a. Outside counsel and up to three in-house counsel for the Parties;

b. Outside experts or consultants retained by outside counsel for purposes of this action, provided they have signed a non-disclosure agreement in the form attached hereto as Exhibit "A";

c. Mediators or arbitrators engaged by the parties for settlement purposes in the action;

d. Secretarial, paralegal, clerical, or duplicating and data processing personnel of the foregoing;

e. The Court and court personnel;

f. Any deponent or witness may be shown or examined on any information, document or thing designated Attorneys' Eyes Only if it appears that the witness authored or received a copy of it, was involved in the subject matter described therein, is an employee of the Designating Party or was an employee of the Designating Party at the time that the Attorneys' Eyes Only material was created (as long as such person has signed a non-disclosure agreement in the form attached hereto as Exhibit "A" and is not in an adversarial position—unrelated to this litigation - to the Designating Party), and any person who Counsel reasonably believes, prior to disclosing the Attorneys' Eyes Only material, that such person has knowledge of such information or the contents of the Attorneys' Eyes Only material, or if the Designating Party consents to such disclosure;

g. Vendors retained by or for the parties to assist in preparing for pretrial discovery, trial and/or hearings including, but not limited to, court reporters, videographers, legal translators, litigation support personnel, jury consultants, individuals to prepare demonstrative and audiovisual aids for use in the courtroom or in depositions or mock jury sessions, as well as their staff, stenographic, and clerical employees whose duties and responsibilities require access to such materials; and

h. Other persons that counsel for the Designating Party agrees in advance, or as Ordered by the Court.

8. Confidential and Attorneys' Eyes Only material shall be used only by individuals permitted access to it under Paragraphs 6 and 7. Confidential and Attorneys' Eyes Only material, copies thereof, and the information contained therein, shall not be disclosed in any manner to any other individual,

until and unless (a) outside counsel for the party asserting confidentiality waives the claim of confidentiality, or (b) the Court orders such disclosure.

9. With respect to any depositions that involve a disclosure of Confidential or Attorneys' Eyes Only material of a party to this action, such party shall have until thirty (30) days after receipt of the deposition transcript within which to inform all other parties that portions of the transcript are to be designated Confidential, which period may be extended by agreement of the parties. No such deposition transcript shall be disclosed to any individual other than the individuals described in Paragraph 7(a)-(e) and (h) above and the deponent during these thirty (30) days, and no individual attending such a deposition shall disclose the contents of the deposition to any individual other than those described in Paragraph 7(a)-(h) above during said thirty (30) days. Upon being informed that certain portions of a deposition are to be designated as Confidential or Attorneys' Eyes Only, all parties shall immediately cause each copy of the transcript in its custody or control to be appropriately marked and limit disclosure of those designated portions of the transcript in accordance with this Order. The remaining, non-designated portions of the transcript will not be subject to the terms of this Order.

10. If counsel for a party receiving documents or information designated as Confidential or Attorneys' Eyes Only hereunder objects to such designation of any or all of such items, the following procedure shall apply:

(a) Counsel for the objecting party shall serve on the Designating Party a written objection to such designation, which shall describe with particularity the documents or information in question. Counsel for the Designating Party shall respond in writing to such objection within 14 days, and shall state with particularity the grounds for asserting that the document or information is Confidential or Attorneys' Eyes Only. If no timely written response is made to the objection, the challenged designation will be deemed to be void. If the Designating Party or nonparty makes a timely response to such objection asserting the propriety of the designation, counsel shall then confer in good faith in an effort to resolve the dispute.

(b) If a dispute as to a Confidential or Attorneys' Eyes Only designation of a document or item of information cannot be resolved by agreement, the proponent of the designation being challenged shall present the dispute to the Court initially by telephone or letter, in accordance with Local Civil Rule 37.1(a)(1), before filing a formal motion for an order regarding the challenged designation. The document or information that is the subject of the filing shall be treated as originally designated pending resolution of the dispute.

11. A Party shall file under seal any document containing or referencing Confidential or Attorneys' Eyes Only material. All requests to seal documents filed with the Court shall comply with Local Civil Rule 5.3.

12. If the need arises during trial or at any Hearing before the Court for any Party to disclose Confidential or Attorneys' Eyes Only information, it may do so only after giving notice to the Designating Party and as directed by the Court.

13. To the extent consistent with applicable law, the inadvertent or unintentional disclosure of Confidential or Attorneys' Eyes Only material that should have been designated as such, regardless of whether the information, document or thing was so designated at the time of disclosure, shall not be deemed a waiver in whole or in part of a party's claim of confidentiality, either as to the specific information, document or thing disclosed or as to any other material or information concerning the same or related subject matter. Such inadvertent or unintentional disclosure may be rectified by notifying in writing counsel for all parties to whom the material was disclosed that the material should have been designated

Confidential or Attorneys' Eyes Only within a reasonable time after disclosure. Such notice shall constitute a designation of the information, document or thing as Confidential or Attorneys' Eyes Only under this Discovery Confidentiality Order.

14. When the inadvertent or mistaken disclosure of any information, document or thing protected by privilege or work-product immunity is discovered by the producing party and brought to the attention of the receiving party, the receiving party's treatment of such material shall be in accordance with Federal Rule of Civil Procedure 26(b)(5)(B). Such inadvertent or mistaken disclosure of such information, document or thing shall not by itself constitute a waiver by the producing party of any claims of privilege or work-product immunity. However, nothing herein restricts the right of the receiving party to challenge the producing party's claim of privilege if appropriate within a reasonable time after receiving notice of the inadvertent or mistaken disclosure.

15. No information that is in the public domain or which is already known by the receiving party through proper means on a non-confidential basis or which is or becomes available to a party from a source other than the party asserting confidentiality, rightfully in possession of such information on a non-confidential basis, shall be deemed or considered to be Confidential or Attorneys' Eyes Only material under this Discovery Confidentiality Order.

16. This Discovery Confidentiality Order shall not deprive any party of its right to object to discovery by any other party or on any otherwise permitted ground. This Discovery Confidentiality Order is being entered without prejudice to the right of any party to move the Court for modification or for relief from any of its terms.

17. This Discovery Confidentiality Order shall survive the termination of this action and shall remain in full force and effect unless modified by an Order of this Court or by the written stipulation of the parties filed with the Court.

18. Upon final conclusion of this litigation, each Party or other individual subject to the terms hereof shall destroy all originals and unmarked copies of documents and things containing another party's or non-party's Confidential or Attorneys' Eyes Only material or shall, at the option of the Designating Party, return requested documents to the Designating Party, and certify in writing to the Designating Party that such materials have been destroyed or returned, as the case may be. Notwithstanding the foregoing, counsel may retain copies of Court filings, transcripts (including deposition transcripts), deposition or trial exhibits, and expert reports that refer to or incorporate Confidential or Attorneys' Eyes Only material, subject to the provisions of this Discovery Confidentiality Order. Further, attorney work-product materials that contain Confidential or Attorneys' Eyes Only material need not be destroyed, but if they are not destroyed, the person in possession of the attorney work-product will continue to be bound by this Order with respect to all such retained information. To the extent a party or non-party requests the return of Confidential or Attorneys' Eyes Only material from a receiving party or the Court after the final conclusion of the litigation, including the exhaustion of all appeals therefrom and all related proceedings, the party shall file a motion seeking such relief.

IT IS SO ORDERED.

DATED: June 30, 2014


JOSEPH A. DICKSON, U.S.M.J.

**UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY
NEWARK VICINAGE**

**IN RE VEHICLE CARRIER SERVICES
ANTITRUST LITIGATION**

Master Docket No. 13-cv-3306 (ES) (JAD)
(MDL No. 2471)

This Document Relates to all Actions

**AGREEMENT TO BE BOUND BY
DISCOVERY CONFIDENTIALITY ORDER**

I, _____, being duly sworn, state that:

1. My address is _____.
2. My present employer is _____ and the address of my present employment is _____.
3. My present occupation or job description is _____.
4. I have carefully read and understood the provisions of the Discovery Confidentiality Order in this case signed by the Court, and I will comply with all provisions of the Discovery Confidentiality Order.
5. I will hold in confidence and not disclose to anyone not qualified under the Discovery Confidentiality Order any Confidential or Attorneys' Eyes Only material, or any words, summaries, abstracts, or indices of Confidential Information disclosed to me.
6. I will limit use of Confidential and Attorneys' Eyes Only material disclosed to me solely for purpose of this action.
7. No later than the final conclusion of the case, I will return all Confidential and Attorneys' Eyes Only and summaries, abstracts, and indices thereof which come into my possession, and documents or things which I have prepared relating thereto, to counsel for the party for whom I was employed or retained.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: _____

[Name]

EXHIBIT "A" TO DISCOVERY CONFIDENTIALITY ORDER

EXHIBIT 2

VIA CM/ECF AND VIA ORDINARY MAIL

March 21, 2014

The Honorable Joseph A. Dickson
U.S. Magistrate Judge
U.S. District Court for the District of New Jersey
Newark Vicinage
MLK, Jr. Federal Bldg. & U.S. Courthouse
50 Walnut Street
Newark, New Jersey 07102

Re: ***IN RE VEHICLE CARRIER SERVICES ANTITRUST LITIG.***
Master Docket No. 13-cv-03306 (ES/JAD) (MDL No. 2471)
(This filing relates to all cases)

Dear Magistrate Judge Dickson:

In compliance with the Order No. 3, dated March 4, 2014, kindly accept this letter as the parties' joint report in respect of the status of (a) the discovery confidentiality order and (b) the date range applicable to the parties' document preservation obligations.

DISCOVERY CONFIDENTIALITY ORDER.

The parties have agreed to almost all of the terms of the proposed discovery confidentiality order. They differ only in the following respects: in paragraphs 6(f) and 7(f), plaintiffs propose that "potential" witnesses and anyone who "was an employee of the Designating Party at the time that the Confidential [or Attorneys' Eyes Only] material was created" presumptively should be allowed access to Confidential or Attorneys' Eyes Only material. Defendants disagree.

For ease of reference, a "red-lined" version of the discovery confidentiality order showing plaintiffs' proposed language stricken in paragraphs 6(f) and 7(f) is attached hereto as **Exhibit "A"** and is made a part hereof by reference. The parties' respective positions are as follows:

PLAINTIFFS' POSITION.

The Parties have met and conferred regarding the discovery confidentiality order in this case, with both sides proposing changes to the order and acceding to modifications proposed by the other. The Parties have now narrowed their dispute to a single issue: How confidential material may be used with witnesses and deponents in this case.¹ Plaintiffs respectfully submit that their proposal, which would permit a party to utilize Confidential and Attorneys' Eyes Only ("AEO")

¹ The disputed language is marked in redline in paragraphs 6(f) and 7(f) of Exhibit "A".

documents with a narrowly defined category of individuals, is the appropriate one for the efficient prosecution of this case.

Following the approach used in many cases involving confidential information, the Parties have agreed to a two-tiered structure where sensitive information may be marked Confidential or AEO. The parties have agreed that certain categories of people (e.g., counsel, clerical staff, and the Court) may see this information as a matter of course, without requiring prior notice to the party that designated the material (and thus forcing a party to reveal in advance what information it finds most important). The Parties have agreed that certain categories of deponents and witnesses may see Confidential and AEO material. Their dispute concerns whether the following should be included in these categories: (a) individuals who were employees of the party that designated the material Confidential or AEO at the time the material in question was created, and (b) potential witnesses. Plaintiffs' address these two categories in turn.

Former Employees. Counsel should be able to use Confidential or AEO material with a former employee of the designating party when the material in question was created while the individual was employed by the designating party. The parties have already agreed that they may use Confidential or AEO material with *current* employees of the designating party. It is likewise appropriate to permit the use of this material with individuals who worked for the company at the time the material was created.² As employees of the designating party when the materials were created, these individuals were exposed to the confidential information and can provide important evidence regarding the meaning and context of that information. This is true even if it is unclear from the face of the document that the former employee received the Confidential or AEO material at issue. For example, imagine a document shows that during the time Employees A and B worked for a company, Employee A had certain kinds of contacts with employees of the company's competitor. It is reasonable to show that document to now-former Employee B and inquire whether she was aware of these contacts or had similar contacts herself. And since this use is limited to material created while the individual was employed by the designating party, it creates no risk of exposing the designating party's new confidential material to someone who would otherwise have no reason to have been exposed to it.

Moreover, it is possible that many of the relevant employees involved in the conduct in which Plaintiffs' claims arise will leave their employment with Defendants once deposition discovery begins in this case. Therefore, it is important that Plaintiffs have the opportunity to examine Defendants' former employees regarding confidential information that they may have learned or had knowledge about at the time the confidential material was created.

Defendants' preferred approach also creates a lop-sided advantage for the designating party, because the designating party is free to show its own Confidential or AEO material to whomever it chooses. For example, if a former employee receives a subpoena to testify, the designating party can meet with the deponent in advance and use confidential and AEO material that the designating party produced in helping her prepare for the deposition. Yet the party taking the

² Earlier in the meet and confer process, Defendants did not object to permitting the use of Confidential and AEO material with former employees. On March 19, Defendants informed Plaintiffs, without explanation, that they now objected to this provision.

deposition would not be permitted to use that same information in the deposition without the consent of the designating party.

Potential Witnesses. Counsel should be permitted to use Confidential and AEO material with potential witnesses. Meeting with potential witnesses, including asking them about relevant documentary evidence, is an important part of developing the factual record in the case. Plaintiffs recognize that this must be balanced with the Parties' legitimate interest in protecting their Confidential and AEO material, and their proposal contains important limitations to achieve this balance. The limitations contained in paragraphs 6(f) and 7(f)—e.g., employees of the designating party, individuals who authored or received the document at issue—define an appropriate limit of which potential witnesses can see Confidential and AEO material.

It is also worth noting Plaintiffs' proposal regarding potential witnesses is equally, if not more, beneficial to Defendants. With multiple Defendants in this case, a single Defendant will not be able to use any documents designated as Confidential or AEO by another Defendant when interviewing its own employees or prepping them for deposition, even when those documents indicate that the employee received the information at issue or was present at the meeting discussed. Plaintiffs' proposal would permit such use.

Additionally, any concerns Defendants have regarding either former employees or potential witnesses can be ameliorated by requiring them to sign the Agreement to Be Bound by Discovery Confidentiality Order (Exhibit A to the Order) and not permitting them to keep any Confidential or AEO material.

DEFENDANTS' POSITION.

Following the suggestion made by the Court during the February 27, 2014 status conference, defendants originally proposed that the parties enter into a discovery confidentiality order that mirrored, in all significant respects, the discovery confidentiality order appearing as Appendix "S" to the Court's Local Rules. After trading drafts and a meet-and-confer between the parties, the differences between them boil down to the following two items: plaintiffs insist that they be allowed, as of right, to show defendants' Confidential or Attorneys' Eyes Only material to (a) any "potential" witness, and (b) anyone who "was an employee of the Designating Party at the time that the Confidential [or Attorneys' Eyes Only] material was created[.]" Defendants maintain that plaintiffs' demands exceed what is customary, proper or sensible in the circumstances. Because the Court suggested that the parties start with the Court's own form for a discovery confidentiality order, defendants use that document as the proper point of departure.

The two items on which plaintiffs insist are absent from the Court's form of discovery confidentiality order: paragraph 3(e) of Appendix "S" to the Local Rules provides that "[a]ny deponent [and not any witness, much less a 'potential' witness] may be shown or examined on any information, document or thing designated Confidential [to which the parties have added another category of 'Attorney's Eyes Only'] if it appears that the witness authored or received a copy of it, was involved in the subject matter described therein or is employed by the party who produced the information, document or thing, or if the producing party consents to such disclosure." Plaintiffs propose to expand on those well-proven limitations to allow the disclosure of defendants' Confidential or Attorneys' Eyes Only material to any "potential" witness or to any deponent or potential witness who was -- but is not currently -- employed by the Designating

Party. That is an unwarranted and unnecessary expansion of the disclosure of defendants' Confidential or Attorneys' Eyes Only material.

The notion of a "potential" witness has no relevance in this context: either a person is a deponent -- one whose testimony is tendered at a deposition -- or a witness -- one whose testimony is tendered at trial. The concept that plaintiffs unilaterally can label a person as a "potential" witness and thereby disclose defendants' Confidential and Attorneys' Eyes Only material is the exception that swallows the rule. Likewise, allowing disclosure as of right to a deponent or witness solely because that person happened to have been employed by a defendant at the time the Confidential or Attorneys' Eyes material was created -- but no longer is so employed and, hence, has no obligation of confidentiality -- allows disclosure that is entirely untethered to the limited bases on which disclosure is allowed in the first place: that there be some current nexus -- either the authorship of the material, the contemporaneous receipt of the material, the contemporaneous involvement in the subject matter of the material, the contemporaneous employment with the owner of the material or the actual contemporaneous knowledge of the material -- between the deponent or witness and the material itself. That necessary nexus is jettisoned entirely by plaintiffs' proposal.

The parties were charged by the Court to enter into a discovery confidentiality order and they were provided a template for achieving that goal. Plaintiffs' proposals do violence to the principles that undergird a properly drafted discovery confidentiality order and far exceed that which is usual and customary. It is not sensible to reject reasonable restrictions when plaintiffs retain a remedy: if they wish to disclose defendants' Confidential or Attorneys' Eyes Only material to someone and the producing party is unwilling to consent to that disclosure, plaintiffs always can seek the Court's intervention. To allow plaintiffs the scope of disclosure rights they seek is to turn the notion of a confidentiality order on its head. For those reasons, defendants respectfully submit that the additions plaintiffs propose to paragraphs 6(f) and 7(f) to the attached form of discovery confidentiality order should be rejected.

SCOPE OF THE PRESERVATION OBLIGATION.

The parties have not been able to come to closure on the relevant start- and end-dates for their preservation obligations. Their respective positions and proposals are set forth below.

PLAINTIFFS' POSITION.

Plaintiffs propose the following date ranges for the preservation of documents and things, including electronically stored information: (a) generally, January 1, 1998 through December 31, 2013, with the exception of (b) January 1, 1997 through December 31, 2015 for transactional data (purchase and cost data maintained in an electronic form). This date range is reasonable and consistent with Department of Justice's allegations that the conspiracy began at least as early as January 2000.

In the criminal information filed by the United States of America against Defendant Compañía Sud Americana de Vapores S.A. ("CSAV") on February 27, 2014, the United States charged CSAV with "enter[ing] into and participat[ing] with its co-conspirators in a combination and conspiracy to suppress and eliminate competition by allocating customers and routes, rigging bids, and fixing prices for international ocean shipping services for roll-on, roll-off cargo, such as cars and trucks, to and from the United States and elsewhere" *from at least January 2000 to September 2012*. *United States of America v. Compañía Sud Americana de Vapores S.A.*, No.

14-cr-00100-GLR, at ¶¶ 1, 5 (D. Md. Feb. 27, 2014). Even if the conspiratorial activities did not begin until January 1, 2000, a short period of time (here, two years) preceding January 1, 2000 would be relevant to uncover evidence of the conspiracy's formation, design, and pattern and the Defendants' intent. *See In re Urethane Antitrust Litig.*, 261 F.R.D. 570, 573 (D. Kan. 2009) (explaining that liberal policy favoring discovery is "particularly appropriate" in antitrust cases to uncover evidence of invidious design, pattern, or intent) (citing cases).³

Likewise, it is not reasonable to assume that Defendants' conspiratorial activities ceased on the day that government investigators raided their offices, or that they ceased to discuss their misconduct after that date. It is also possible – if not likely – that there are relevant documents relating to, among other topics, the government's investigation, the Defendants' reactions to the investigations, including efforts to conceal or destroy evidence of the conspiracy, the impact of the conspiracy, and Defendants' customers' reactions and communications relating to the conspiracy. Setting a December 31, 2013 end date for preserving documents ensures that key evidence will not be lost.

This window on either side of the conspiracy is also important for showing business practices and market conditions when the conspiracy was not in place, which will permit comparison to the conspiratorial period. *Accord In re Folding Carton Antitrust Litig.*, 83 F.R.D. 251, 255 (N.D. Ill. 1978) (holding "the post-[conspiracy] industry information is relevant to the determination of the existence of the alleged conspiracy, the termination of the alleged conspiracy, and the determination of damages, if any"); *In re Shopping Carts Antitrust Litig.*, 95 F.R.D. 299, 309 (S.D.N.Y. 1982) (allowing discovery of financial information three years post-conspiracy because a "dramatic and sudden change" in industry conditions and pricing "might tend to indicate that a conspiracy did exist," in addition to "provid[ing] plaintiffs with information relevant to damages"). This is especially true with respect to transactional data: several years of data before and after the conspiratorial period will permit Plaintiffs' experts to conduct benchmark or "before and after" econometric analysis showing the effect of the conspiracy on prices for vehicle carrier services, and that is why Plaintiffs propose a slightly longer period for the preservation of transactional data.⁴ *See, e.g., Kleen Prods. LLC v. Packaging Corp. of Am.*, No. 10 C 5711, 2013 U.S. Dist. LEXIS 3016, at *29-30 (N.D. Ill. Jan. 9, 2013) (permitting data discovery for five years pre-conspiracy and two years post-conspiracy "to provide an accurate

³ This is particularly true in antitrust cases, where courts generally take an expansive view of relevance and permit broad discovery. "Broad discovery is permitted because direct evidence of an anticompetitive conspiracy is often difficult to obtain, and the existence of a conspiracy frequently can be established only through circumstantial evidence, such as business documents and other records." *In re Auto. Refinishing Paint Antitrust Litig.*, MDL No. 1426, 2004 U.S. Dist. LEXIS 21960, at *8 (E.D. Pa. Oct. 29, 2004).

⁴ In the days immediately following the government announcement of CSAV's plea deal, Plaintiffs suggested a preservation start date of January 1, 2000. Upon further consideration, Plaintiffs determined that evidence before the start of the conspiracy would be relevant and important. Accordingly, Plaintiffs modestly extended the preservation period. During the meet and confer process, Plaintiffs offered to limit the scope of material that must be preserved before January 1, 2000 to transactional data and documents relating to communications, rates, and market conditions prior to 2000. Defendants declined this offer.

economic picture”); *Folding Carton*, 83 F.R.D. at 253 (allowing data discovery for at least four years post-conspiracy to help prove damages).

Defendants have offered no principled basis why their preservation obligations should not extend back to at least January 1, 2000. Defendants argue that the preservation period should be limited to September 6, 2008 through September 6, 2012.⁵ As Plaintiffs’ understand it, this is based on four years (e.g., the statute of limitations) prior to the government raids on Defendants’ offices. Yet, Defendants completely ignore the Department of Justice’s allegation that the conspiracy began as early as January 1, 2000 and Plaintiffs’ allegations of fraudulent concealment. Even if Defendants ultimately show that any of the damage claims are barred by the statute of limitations, documents and information from this prior period are still within the scope of discovery to show the origins and conduct of the conspiracy. Accordingly, it should be preserved.

The parties have reached an impasse. Plaintiffs filed initial complaints that had proposed class periods beginning as early as January 1, 2006 and continuing through the present. Each Plaintiff group will be filing consolidated amended complaints that will incorporate the latest information, including CSAV’s guilty plea. It is premature for Plaintiffs to state with certainty their proposed class periods, but it is possible that Plaintiffs will seek a proposed class period beginning around January 1, 2000. It would be incongruous to have a preservation date range that does not encompass Plaintiffs’ proposed class periods.

Plaintiffs are cognizant of the difference between preservation and production. Plaintiffs are not suggesting that the preservation date range will control the scope of production. If Defendants have affirmative defenses that ultimately circumscribe the scope of production, then, at the appropriate time, the Court can consider the merits of those defenses. But those defenses should not impact the preservation date range. Any documents not preserved will be lost.

DEFENDANTS’ POSITION.

The determination of what the proper start- and end-dates for the parties’ preservation obligations requires context. Defendants have proposed a reasonable preservation period with start- and end- dates based on the period of potential recovery in this case and the statute of limitations. Plaintiffs, on the other hand, seek to expand the preservation period well beyond any logical limits. Plaintiffs have not offered a cogent explanation for their demand to preserve documents created more than a year after the end of the class period, and their explanation for preservation start-dates extending back into the 1990s is insufficient in light of the clear boundaries that the statute of limitations places on their claims. Defendants nonetheless have sought to compromise with plaintiffs while maintaining a preservation period tethered to actual facts and allegations. The parties have reached an impasse.

To review, in the original preservation plan plaintiffs tendered to the Court a part of the January 24, 2014 joint letter report, plaintiffs sought preservation from January 1, 2002 to the present; defendants objected and proposed instead the period September 6, 2008 to September 6, 2012.

⁵ During the meet and confer, Defendants offered to agree to a preservation period of January 1, 2004 through October 6, 2012, but later withdrew it after Plaintiffs indicated they could not agree to a time period so incongruous with the allegations made by the Department of Justice.

Compare Plaintiffs proposed stipulation and order regarding preservation of documents, electronically stored information and other tangible items, ¶ E (D.E. 62-4), with defendants' Plan regarding the preservation of documents and electronically stored information at 2 (D.E. 62-3). At the February 27, 2014 status conference -- and purportedly based on the criminal information to which only defendant Compañía Sud Americana de Vapores, S.A. agreed to plead as filed that day -- plaintiffs expanded their preservation request to January 1, 2000 to the present; defendants repeated our proposal -- September 6, 2008 to September 6, 2012 -- and explained the statute of limitations rationale on which that proposal is based. Defendants understood the Court as urging that the parties act reasonably and compromise, all the while making it clear that, when confronted with differences like the ones presented here, the Court's default is to split the difference.

On March 7, 2014, defendants forwarded the proposed discovery confidentiality order to plaintiffs and noted that the transmission "leaves [to be discussed] the proposed start and end dates for the preservation obligation." Later that day, plaintiffs proposed the following preservation obligations: "(a) generally, January 1, 1998 through December 31, 2013, with the exception of (b) January 1, 1997 through the present for transactional data (purchase and cost data maintained in an electronic form)." In response, defendants noted that "[p]laintiffs' position to date had a start date of 2000; now plaintiffs unilaterally are going back to 1997." Plaintiffs' explanation for again retreating in respect of the preservation start-dates was the same they tendered to the Court when they retreated from 2002 to 2000: the Compañía Sud Americana de Vapores, S.A. criminal information and plea deal. Notably, even under plaintiffs' theory that this plea deal somehow dictates the range of the preservation period, there is no basis for extending that period beyond September 2012.

On March 14, 2014, the parties conducted a telephonic meet-and-confer during which defendants -- heeding the Court's advice -- presented a compromise proposal: defendants (a) neatly "split the difference" between the date plaintiffs represented to the Court as their proposed start-date (January 1, 2000) and the date defendants represented to the Court as their proposed start date (September 6, 2008), making the start-date January 1, 2004 for documents as well as transaction and cost data, and (b) bifurcated the end-date for documents to October 6, 2012 (one month after the "raids" in order to capture any post-raid "chatter") and for transaction and cost data to December 31, 2014 (to allow for both pre- and post-period comparison data). Plaintiffs advised that they were unable to respond as they needed to confer among themselves first; plaintiffs committed to provide a response by March 18, 2014, at the latest.

During the evening of March 18, 2014, plaintiffs responded to the proposal that defendants made during the meet-and-confer the preceding Friday morning. Plaintiffs proposed the following date ranges for preservation obligations: "(a) generally, January 1, 1998 through December 31, 2013, with the exception of (b) January 1, 1997 through December 31, 2015 for transactional data (purchase and cost data maintained in an electronic form)[.]" Plaintiff added that "[w]ith respect to the start date for everything other than transactional data, if Defendants will agree to Plaintiffs' proposed dates, then Plaintiffs would be willing to narrow the scope of what is to be preserved from the January 1, 1998 through December 31, 1999 time period. While [plaintiffs] think the discussion of specific language does not make sense until [they] know whether Defendants are open to the proposal in principle, the general idea of the limitation would be to focus on categories relating to communications, rates, and market conditions prior to 2000." Defendants immediately responded, noting that "plaintiffs' preservation date proposals entirely ignored defendants' proposal of Friday, March 14, 2014" and that plaintiffs' proposal "does not

bode well for any notion of compromise with which I am familiar.” The next day, defendants responded: “For self-evident reasons, defendants again reject plaintiffs’ continually expanding proposals and reassert our earlier compromise: for documents, a preservation period of January 1, 2004 to October 6, 2012 (four years before the limitations period and one month after the ‘raids’ in order to capture any post-raid ‘chatter’); and for transaction and cost data, a preservation period of January 1, 2004 to December 31, 2014 (to allow for both pre- and post-period data).” Defendants further noted that “[i]f that is not acceptable to plaintiffs, defendants will revert to their original preservation proposal: September 6, 2008 to September 6, 2012.”

It is not possible to compromise with a party that -- although directly instructed by the Court that it should seek agreement on an issue -- continually tries to move the goal posts. Plaintiffs were duty-bound to properly investigate their claims before they filed their actions; a fundamental component of that investigation had to be when their claims started and when they ended. To seek to impose a preservation obligation on defendants that grossly exceeds the period of potential recovery clearly limited by the statute of limitations is improper, and cannot be countenanced. For those reasons, defendants respectfully submit that the Court should define the date range of the parties’ preservation obligations in accordance with defendants’ compromise proposal: for documents, a preservation period of January 1, 2004 to October 6, 2012; and for transaction and cost data, a preservation period of January 1, 2004 to December 31, 2014.

* * * * *

The parties respectfully submit that a determination of these issues would benefit from the opportunity for argument during an in-person conference with the Court. For that reason, the parties respectfully request that the Court entertain such argument at a time and date convenient to the Court.

With appreciation for your Honor’s attention to this matter, we remain,

Respectfully yours,

On behalf of the Direct Purchaser Plaintiffs:

/s/ Kit A. Pierson

COHEN MILSTEIN SELLERS & TOLL PLLC

/s/ Steven A. Kanner

**FREED KANNER LONDON & MILLEN
LLC**

/s/ Robert N. Kaplan

KAPLAN FOX & KILSHEIMER LLP
Interim Co-Lead Counsel

/s/ Lewis H. Goldfarb

**McELROY, DEUTSCH, MULVANEY &
CARPENTER, LLP**

*On behalf of defendants Wilh. Wilhelmsen
Holding ASA, Wilh. Wilhelmsen ASA,
Wallenius Wilhelmsen Logistics AS, Wallenius
Wilhelmsen Logistics Americas LLC,
Wallenius Lines AB., WWL Vehicle Services
Americas Inc., EUKOR Vehicle Carriers Inc.,
American Shipping and Logistics Inc.,
American Roll-on Roll-off Carrier, LLC, and
American Auto Logistics, Inc.:*

/s/ Roberto A. Rivera-Soto
BALLARD SPAHR LLP

- and -

/s/ Benjamin F. Holt
HOGAN LOVELLS US LLP

Interim Liaison Counsel

On behalf of End Payor Plaintiffs:

/s/ Hollis Salzman
ROBINS, KAPLAN, MILLER & CIRESI LLP

/s/ Warren T. Burns
SUSMAN GODFREY LLP

/s/ Steven N. Williams
COTCHETT, PITRE & MCCARTHY, LLP
Interim Co-Lead Counsel

/s/ James E. Cecchi
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Interim Liaison Counsel

On behalf of the Automobile Dealer Plaintiffs:

/s/ Jonathan W. Cuneo
CUNEO GILBERT & LADUCA, LLP

/s/ Don Barrett
BARRETT LAW GROUP, P.A.

/s/ Shawn Raiter
LARSON • KING LLP
Interim Co-Lead Counsel

/s/ Peter S. Pearlman
**COHN, LIFLAND, PEARLMAN, HERRMANN &
KNOPF LLP**

Interim Liaison Counsel

*On behalf of defendants Mitsui O.S.K. Lines,
Ltd., Mitsui O.S.K. Bulk Shipping U.S.A.), Inc.,
MOL (America) Inc., MOL Logistics (U.S.A.),
Inc., Nissan Motor Car Carriers Co., Ltd.,
World Logistics Service (U.S.A.) Inc., and
World Transport Co., Ltd.:*

/s/ James L. Cooper
ARNOLD & PORTER LLP

*On behalf of defendants "K" Line America,
Inc. and Kawasaki Kisen Kaisha, Ltd.:*

/s/ Mark W. Nelson
CLEARY GOTTlieb STEEN & HAMILTON LLP

*On behalf of defendants Compañía Sud
Americana de Vapores, S.A. and CSAV
Agency, LLC:*

/s/ Steven F. Cherry
**WILMER CUTLER PICKERING HALE & DORR
LLP**

*On behalf of defendants NYK Line (North
America) Inc. and Nippon Yusen Kabushiki
Kaisha:*

/s/ John R. Fornaciari
BAKER & HOSTETLER LLP

*On behalf of defendant Toyofuji Shipping Co.,
Ltd.:*

/s/ J. Clayton Everett, Jr.
MORGAN, LEWIS & BOCKIUS LLP

On behalf of defendant Fujitrans U.S.A., Inc.:

/s/ Craig A. Benson
**PAUL, WEISS, RIFKIND, WHARTON &
GARRISON LLP**

EXHIBIT “A”

March 21, 2014 DRAFT

UNITED STATES DISTRICT COURT
THE DISTRICT OF NEW JERSEY
NEWARK VICINAGE

IN RE VEHICLE CARRIER SERVICES
ANTITRUST LITIGATION :

:
: Master Docket No. 13-cv-3306 (ES) (JAD)
: (MDL No. 2471)
:

This Document Relates to all Actions

DISCOVERY CONFIDENTIALITY ORDER

It appearing that discovery in the above-captioned action is likely to involve the disclosure of confidential information, it is ORDERED as follows:

1. This Discovery Confidentiality Order ("Order") governs the named Plaintiffs ("Plaintiffs") and all named Defendants ("Defendants") (collectively, "the Parties") in the captioned matter and all civil actions subsequently transferred, coordinated or consolidated with this action, including the consolidated direct purchaser, end-payor, and dealer actions (the "Actions"). This Order shall also govern and apply to material produced by non-parties in any case to which this Order applies.
2. This Order shall govern the use of Confidential and Attorneys' Eyes Only material produced during discovery in the Actions, including documents, depositions, deposition exhibits, interrogatory responses, and admissions. For purpose of this Order, the Party or non-party designating information, documents, materials or items as "Confidential" or "Attorneys' Eyes Only" (the "Designating Party") bears the burden of establishing the confidentiality of all such information, documents, materials, or items. All Confidential and Attorneys' Eyes Only material exchanged pursuant to this Order shall be used by the receiving party solely for purposes of the Actions, shall not be used by the receiving party for any other purpose, and shall not be disclosed by the receiving party to anyone other than as permitted by this Order.
3. Any Party and any non-party shall have the right to designate as "Confidential" and subject to this Order any information, document, or thing, or portion of any document or thing produced by it: (a) that contains trade secrets, competitively sensitive technical, marketing, financial, sales or other confidential business information, or (b) that contains private or confidential personal information, or (c) that contains information received in confidence from non-parties, or (d) which the producing party otherwise believes in good faith to be entitled to protection under Rule 26(c)(1)(G) of the Federal Rules of Civil Procedure and Local Civil Rule 5.3. Any Party or any non-party covered by this Order, who produces or discloses any Confidential material, including without limitation any information, document, thing, interrogatory answer, admission, pleading, or testimony, shall mark the same with the following or similar legend: "CONFIDENTIAL" or "CONFIDENTIAL - SUBJECT TO DISCOVERY CONFIDENTIALITY ORDER" (hereinafter "Confidential").
4. Any Party and any non-party shall have the right to designate as "Attorneys' Eyes Only" and subject to this Order any information, document, or thing, or portion of any document or thing produced by it that contains highly sensitive business or personal information, the disclosure of

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which is highly likely to cause significant harm to an individual or to the business or competitive position of the designating party. Any Party or any non-party covered by this Order, who produces or discloses any Attorneys' Eyes Only material, including without limitation any information, document, thing, interrogatory answer, admission, pleading, or testimony, shall mark the same with the following or similar legend: "ATTORNEYS' EYES ONLY" or "ATTORNEYS' EYES ONLY - SUBJECT TO DISCOVERY CONFIDENTIALITY ORDER" (hereinafter "Attorneys' Eyes Only").

5. All Confidential and Attorneys' Eyes Only material shall be used by the receiving party solely for purposes of the prosecution or defense of this action, shall not be used by the receiving party for any business, commercial, competitive, personal or other purpose, and shall not be disclosed by the receiving party to anyone other than those permitted under this Order, unless and until the restrictions herein are removed either by written agreement of counsel for the Designating Party, or by Order of the Court. It is, however, understood that counsel for a Party may give advice and opinions to his or her client solely relating to the above-captioned action based on his or her evaluation of Confidential and Attorneys' Eyes Only material, provided that such advice and opinions shall not reveal the content of specific Attorneys' Eyes Only material except by prior written agreement of counsel for the Designating Party, or by Order of the Court.

6. Confidential material and the contents of Confidential material may be disclosed only to the following individuals under the following conditions:

- a. Outside counsel (herein defined as any attorney at the Parties' outside law firms) and relevant in-house counsel for the parties;
- b. Outside experts or consultants retained by outside counsel for purposes of this action, provided they have signed a non-disclosure agreement in the form attached hereto as Exhibit "A";
- c. Mediators or arbitrators engaged by the parties for settlement purposes in the action;
- d. Secretarial, paralegal, clerical, or duplicating and data processing personnel of the foregoing;
- e. The Court and court personnel;
- f. Any deponent or ~~potential~~-witness may be shown or examined on any information, document or thing designated Confidential if it appears that the witness authored or received a copy of it, was involved in the subject matter described therein, is an employee of the Designating Party ~~or was an employee of the Designating Party at the time that the Confidential material was created~~, and any person who Counsel reasonably believes, prior to disclosing the Confidential material, that such person has knowledge of such information or the contents of the Confidential material, or if the Designating Party consents to such disclosure;
- g. Vendors retained by or for the parties to assist in preparing for pretrial discovery, trial and/or hearings including, but not limited to, court reporters, videographers, legal translators, litigation support personnel, jury consultants, individuals to prepare demonstrative and audiovisual aids for use in the courtroom or in depositions or mock jury sessions, as well as their staff, stenographic, and clerical employees whose duties and responsibilities require access to such materials;

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h. The Parties, which in the case of the parties to this litigation that are corporations or other business entities shall mean executives who are required to participate in decisions with reference to this lawsuit; and

i. Other persons that counsel for the Designating Party agrees in advance, or as Ordered by the Court.

7. Attorneys' Eyes Only material and the contents of Attorneys' Eyes Only material may be disclosed only to the following individuals under the following conditions:

a. Outside counsel and up to three in-house counsel for the Parties;

b. Outside experts or consultants retained by outside counsel for purposes of this action, provided they have signed a non-disclosure agreement in the form attached hereto as Exhibit "A";

c. Mediators or arbitrators engaged by the parties for settlement purposes in the action;

d. Secretarial, paralegal, clerical, or duplicating and data processing personnel of the foregoing;

e. The Court and court personnel;

f. Any deponent or ~~potential~~-witness may be shown or examined on any information, document or thing designated Attorneys' Eyes Only if it appears that the witness authored or received a copy of it, was involved in the subject matter described therein, is an employee of the Designating Party ~~or was an employee of the Designating Party at the time that the Attorneys' Eyes Only material was created~~, and any person who Counsel reasonably believes, prior to disclosing the Attorneys' Eyes Only material, that such person has knowledge of such information or the contents of the Attorneys' Eyes Only material, or if the Designating Party consents to such disclosure;

g. Vendors retained by or for the parties to assist in preparing for pretrial discovery, trial and/or hearings including, but not limited to, court reporters, videographers, legal translators, litigation support personnel, jury consultants, individuals to prepare demonstrative and audiovisual aids for use in the courtroom or in depositions or mock jury sessions, as well as their staff, stenographic, and clerical employees whose duties and responsibilities require access to such materials; and

h. Other persons that counsel for the Designating Party agrees in advance, or as Ordered by the Court.

8. Confidential and Attorneys' Eyes Only material shall be used only by individuals permitted access to it under Paragraphs 6 and 7. Confidential and Attorneys' Eyes Only material, copies thereof, and the information contained therein, shall not be disclosed in any manner to any other individual, until and unless (a) outside counsel for the party asserting confidentiality waives the claim of confidentiality, or (b) the Court orders such disclosure.

9. With respect to any depositions that involve a disclosure of Confidential or Attorneys' Eyes Only material of a party to this action, such party shall have until thirty (30) days after

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receipt of the deposition transcript within which to inform all other parties that portions of the transcript are to be designated Confidential, which period may be extended by agreement of the parties. No such deposition transcript shall be disclosed to any individual other than the individuals described in Paragraph 7(a)-(e) and (h) above and the deponent during these thirty (30) days, and no individual attending such a deposition shall disclose the contents of the deposition to any individual other than those described in Paragraph 7(a)-(h) above during said thirty (30) days. Upon being informed that certain portions of a deposition are to be designated as Confidential or Attorneys' Eyes Only, all parties shall immediately cause each copy of the transcript in its custody or control to be appropriately marked and limit disclosure of those designated portions of the transcript in accordance with this Order. The remaining, non-designated portions of the transcript will not be subject to the terms of this Order.

10. If counsel for a party receiving documents or information designated as Confidential or Attorneys' Eyes Only hereunder objects to such designation of any or all of such items, the following procedure shall apply:

(a) Counsel for the objecting party shall serve on the Designating Party a written objection to such designation, which shall describe with particularity the documents or information in question. Counsel for the Designating Party shall respond in writing to such objection within 14 days, and shall state with particularity the grounds for asserting that the document or information is Confidential or Attorneys' Eyes Only. If no timely written response is made to the objection, the challenged designation will be deemed to be void. If the Designating Party or nonparty makes a timely response to such objection asserting the propriety of the designation, counsel shall then confer in good faith in an effort to resolve the dispute.

(b) If a dispute as to a Confidential or Attorneys' Eyes Only designation of a document or item of information cannot be resolved by agreement, the proponent of the designation being challenged shall present the dispute to the Court initially by telephone or letter, in accordance with Local Civil Rule 37.1(a)(1), before filing a formal motion for an order regarding the challenged designation. The document or information that is the subject of the filing shall be treated as originally designated pending resolution of the dispute.

11. A Party shall file under seal any document containing or referencing Confidential or Attorneys' Eyes Only material. All requests to seal documents filed with the Court shall comply with Local Civil Rule 5.3.

12. If the need arises during trial or at any Hearing before the Court for any Party to disclose Confidential or Attorneys' Eyes Only information, it may do so only after giving notice to the Designating Party and as directed by the Court.

13. To the extent consistent with applicable law, the inadvertent or unintentional disclosure of Confidential or Attorneys' Eyes Only material that should have been designated as such, regardless of whether the information, document or thing was so designated at the time of disclosure, shall not be deemed a waiver in whole or in part of a party's claim of confidentiality, either as to the specific information, document or thing disclosed or as to any other material or information concerning the same or related subject matter. Such inadvertent or unintentional disclosure may be rectified by notifying in writing counsel for all parties to whom the material was disclosed that the material should have been designated Confidential or Attorneys' Eyes Only within a reasonable time after disclosure. Such notice shall constitute a designation of the information, document or thing as Confidential or Attorneys' Eyes Only under this Discovery Confidentiality Order.

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14. When the inadvertent or mistaken disclosure of any information, document or thing protected by privilege or work-product immunity is discovered by the producing party and brought to the attention of the receiving party, the receiving party's treatment of such material shall be in accordance with Federal Rule of Civil Procedure 26(b)(5)(B). Such inadvertent or mistaken disclosure of such information, document or thing shall not by itself constitute a waiver by the producing party of any claims of privilege or work-product immunity. However, nothing herein restricts the right of the receiving party to challenge the producing party's claim of privilege if appropriate within a reasonable time after receiving notice of the inadvertent or mistaken disclosure.

15. No information that is in the public domain or which is already known by the receiving party through proper means on a non-confidential basis or which is or becomes available to a party from a source other than the party asserting confidentiality, rightfully in possession of such information on a non-confidential basis, shall be deemed or considered to be Confidential or Attorneys' Eyes Only material under this Discovery Confidentiality Order.

16. This Discovery Confidentiality Order shall not deprive any party of its right to object to discovery by any other party or on any otherwise permitted ground. This Discovery Confidentiality Order is being entered without prejudice to the right of any party to move the Court for modification or for relief from any of its terms.

17. This Discovery Confidentiality Order shall survive the termination of this action and shall remain in full force and effect unless modified by an Order of this Court or by the written stipulation of the parties filed with the Court.

18. Upon final conclusion of this litigation, each Party or other individual subject to the terms hereof shall destroy all originals and unmarked copies of documents and things containing another party's or non-party's Confidential or Attorneys' Eyes Only material or shall, at the option of the Designating Party, return requested documents to the Designating Party, and certify in writing to the Designating Party that such materials have been destroyed or returned, as the case may be. Notwithstanding the foregoing, counsel may retain copies of Court filings, transcripts (including deposition transcripts), deposition or trial exhibits, and expert reports that refer to or incorporate Confidential or Attorneys' Eyes Only material, subject to the provisions of this Discovery Confidentiality Order. Further, attorney work-product materials that contain Confidential or Attorneys' Eyes Only material need not be destroyed, but, if they are not destroyed, the person in possession of the attorney work-product will continue to be bound by this Order with respect to all such retained information. To the extent a party or non-party requests the return of Confidential or Attorneys' Eyes Only material from a receiving party or the Court after the final conclusion of the litigation, including the exhaustion of all appeals therefrom and all related proceedings, the party shall file a motion seeking such relief.

IT IS SO ORDERED.

DATED: March __, 2014

JOSEPH A. DICKSON, U.S.M.J

**UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY
NEWARK VICINAGE**

**IN RE VEHICLE CARRIER SERVICES
ANTITRUST LITIGATION**

:

:
Master Docket No. 13-cv-3306 (ES) (JAD)
: (MDL No. 2471)
:

This Document Relates to all Actions

:

**AGREEMENT TO BE BOUND BY
DISCOVERY CONFIDENTIALITY ORDER**

I, _____, being duly sworn, state that:

1. My address is _____.
2. My present employer is _____ and the address of my present employment is _____.
3. My present occupation or job description is _____.
4. I have carefully read and understood the provisions of the Discovery Confidentiality Order in this case signed by the Court, and I will comply with all provisions of the Discovery Confidentiality Order.
5. I will hold in confidence and not disclose to anyone not qualified under the Discovery Confidentiality Order any Confidential or Attorneys' Eyes Only material, or any words, summaries, abstracts, or indices of Confidential Information disclosed to me.
6. I will limit use of Confidential and Attorneys' Eyes Only material disclosed to me solely for purpose of this action.
7. No later than the final conclusion of the case, I will return all Confidential and Attorneys' Eyes Only and summaries, abstracts, and indices thereof which come into my possession, and documents or things which I have prepared relating thereto, to counsel for the party for whom I was employed or retained.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: _____

[Name]

EXHIBIT "A" TO DISCOVERY CONFIDENTIALITY ORDER

EXHIBIT 3

NOT FOR PUBLICATION

**UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY**

In Re:
Vehicle Carrier Services
Antitrust Litigation

This Document Relates To All Actions

: Hon. Esther Salas
:
: Master Docket No.: 13-cv-3306
: (MDL No. 2471)
:
:
:
:
:

ORDER APPOINTING INTERIM CO-LEAD AND LIAISON COUNSEL

THIS MATTER having come before the Court by Direct Purchaser Plaintiffs for an Order appointing Cohen Milstein Sellers & Toll PLLC, Freed Kanner London & Millen LLC., and Kaplan Fox & Kilsheimer LLP as Interim Co-Lead Counsel, and McElroy, Deutsch, Mulvaney & Carpenter, LLP as Interim Liaison Counsel, for the direct purchaser actions; and the Court having been advised by Direct Purchaser Plaintiffs' counsel representing a proposed class of Direct Purchasers in this proceeding that there is agreement concerning leadership of the proposed class; and

THIS MATTER having come before the Court by End-Payor Plaintiffs for an Order appointing Robins, Kaplan, Miller & Ciresi L.L.P., Susman Godfrey LLP, and Cotchett, Pitre & McCarthy, LLP as Interim Class Counsel, and Carella Byrne Cecchi Olstein Brody & Agnello, P.C. as Interim Liaison Counsel, for the end-payor actions; and the Court having been advised by End-Payor Plaintiffs' counsel representing a proposed class of End-Payor Plaintiffs in this proceeding that there is an agreement concerning leadership of the proposed class; and

THIS MATTER having come before the Court by Automobile Dealer Indirect Purchaser Plaintiffs for an Order appointing Cuneo Gilbert & LaDuca, LLP, Barrett Law Group, P.A. and

Larson • King, LLP as Interim Class Counsel, and Cohn, Lifland, Pearlman, Herrmann & Knopf LLP as Interim Liaison Counsel, for the automobile dealer indirect purchaser actions; and the Court having been advised by Automobile Dealer Indirect Purchaser Plaintiffs' counsel representing a proposed class of Automobile Dealer Indirect Purchaser Plaintiffs in this proceeding that there is an agreement concerning leadership of the proposed class, and good cause appearing

IT IS on this 3rd day of March, 2014,

ORDERED as follows:

- a. Pursuant to Federal Rule of Civil Procedure 23(g), the Court hereby appoints Cohen Milstein Sellers & Toll PLLC, Freed Kanner London & Millen LLC., and Kaplan Fox & Kilsheimer LLP as Interim Co-Lead Counsel, and McElroy, Deutsch, Mulvaney & Carpenter, LLP as Interim Liaison Counsel, for the direct purchaser actions.
- b. Pursuant to Federal Rule of Civil Procedure 23(g), the Court hereby appoints Robins, Kaplan, Miller & Ciresi L.L.P., Susman Godfrey LLP, and Cotchett, Pitre & McCarthy, LLP as Interim Class Counsel, and Carella Byrne Cecchi Olstein Brody & Agnello, P.C. as Interim Liaison Counsel, for the end-payor actions.
- c. Pursuant to Federal Rule of Civil Procedure 23(g), the Court hereby appoints Cuneo Gilbert & LaDuca, LLP, Barrett Law Group, P.A. and Larson • King, LLP as Interim Class Counsel, and Cohn, Lifland, Pearlman, Herrmann & Knopf LLP as Interim Liaison Counsel, for the automobile dealer indirect purchaser actions.
- d. Interim Co-Lead Counsel for each proposed class shall have the following responsibilities with respect to each proposed class:

- i. To brief and argue motions and file opposing briefs in proceedings initiated by other parties;
 - ii. To initiate and conduct discovery proceedings;
 - iii. To act as spokesperson at pretrial conferences;
 - iv. To negotiate with defense counsel with respect to settlement and other matters;
 - v. To call meetings of Plaintiffs' counsel where appropriate;
 - vi. To make all work assignments to Plaintiffs' counsel to facilitate the orderly and efficient prosecution of this litigation and to avoid duplicative or unproductive effort;
 - vii. To conduct trial and post-trial proceedings;
 - viii. To consult with and employ experts;
 - ix. To coordinate the filing of a joint fee petition by Plaintiffs' counsel and to allocate any fees awarded by the Court among Plaintiffs' counsel;
 - x. To perform such other duties and undertake such other responsibilities as they deem necessary and desirable; and
 - xi. To coordinate and communicate with Defendants' counsel with respect to matters addressed in this paragraph.
- e. No motion, request for discovery, or other pretrial proceeding shall be initiated or filed by any Plaintiff except through Interim Co-Lead Class Counsel (or Interim Liaison Counsel at the direction of Interim Co-Lead Counsel) for the respective proposed class, or by leave of the Court.
- f. For each proposed class, Interim Liaison Counsel shall be responsible for facilitating and expediting communications among Interim Co-Lead Class Counsel

and the Court and assisting Interim Co-Lead Class Counsel in the discharge of their responsibilities hereunder.

SO ORDERED.

/s/ *Esther Salas*
United States District Judge